

(29)

Tentative Ruling

Re: ***In re: Alexander Fonseca***
Superior Court Case No. 26CU01952

Hearing Date: August 20, 2026 (Dept. 503)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To deny without prejudice. Petitioner must file an amended petition, with appropriate supporting papers and proposed orders.

Explanation:

On August 4, 2026, this court continued the hearing on this matter to enable counsel to file a translated version of the fee agreement, as required by the California Rules of Court. (See Cal. Rules of Court, rule 3.1110(g).) Though that was over two weeks ago, the court finds no translated copy of the fee agreement in the its file. The petition is therefore denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 8/18/2026.
(Judge's initials) (Date)

(36)

Tentative Ruling

Re: **CVE Contracting Group, Inc. v. Disaster Restoration International – DRI, Inc., et al.**
Superior Court Case No. 22CECG01744

Hearing Date: August 20, 2026 (Dept. 503)

Motions (x2): by Plaintiff to Amend Judgment

Tentative Ruling:

To deny without prejudice.

Explanation:

Plaintiff seeks to amend the judgment entered on August 27, 2024, against defendant Disaster Restoration International – DRI, Inc. ("DRI") to add defendants Chong Kim, Jung Jay H. Kim, and Samat Sok Kim as judgment debtors.¹ Judgment was entered against DRI following this court's granting of plaintiff's motion for summary adjudication of the first, fifth, and sixth causes of action of the operative complaint.

"When jurisdiction is . . . conferred on a Court. . . , all the means necessary to carry it into effect are also given. . ." (Code Civ. Proc., § 187.) "A trial court has the authority to amend a judgment in order to add additional judgment debtors. Code of Civil Procedure section 187 has often served as the basis for such an amendment of a judgment, pursuant to the alter ego doctrine. [Citations.] And, the general rule is that 'a court may amend its judgment at any time so that the judgment will properly designate the real defendants.' [Citation.]" (*Dow Jones Co. v. Avenel* (1984) 151 Cal.App.3d 144, 148–149 (*Dow Jones*), citations omitted.)

In *Dow Jones*, the trial court granted plaintiff's motion for summary judgment in an action against a corporation on an open book account. Thereafter plaintiff filed a motion to amend the judgment to include an individual and another corporation who were not parties to the original action, as judgment debtors, on the ground that they were the alter egos of the named defendant. After consideration of evidence presented, the court made several findings of fact and ultimately determined that the individual and second corporation were alter egos of the corporation against which judgment had been rendered. (*Dow Jones, supra*, at p. 147.) The First District Court of Appeal affirmed the trial court's grant of the motion to amend the judgment to add judgment debtors. (*Id.*, at p. 151.)

While the facts in this case are similar to that in *Dow Jones*, with the exception that the individual defendants here were parties to the original action, plaintiff presents little

¹ These defendants are referenced by their first names in this ruling for clarity, since all three parties share the same last name. No disrespect is intended.

to no evidence other than documents suggesting that defendant Jung is the Chief Executive Officer of DRI, defendant Samat is the secretary, and Chong is the Chief Financial Officer thereof. (Hebesha Decl., filed on July 15, 2026, Exs. C, D.) This is insufficient to allow the court to make any factual findings on the issue of alter ego as to the individual defendants. Accordingly, the motion is denied without prejudice.²

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 8/18/2026.
(Judge's initials) (Date)

² Regarding plaintiff's alternative request for leave to conduct further discovery, discovery at this stage of the proceedings appears unwarranted. The court notes that judgment has been rendered against defendant DRI and defaults have been entered against defendants Chong, Jung, and Samat.